IN THE UNITED STATES DISTRICT COURT
FOR THE MIDDLE DISTRICT OF PENNSYLVANIA

BARRY L. ORNDORFF, Plaintiff,	:	CIVIL ACTION
v.	:	No. 1:26-cv-02944
CUMBERLAND COUNTY, COMMONWEALTH OF PENNSYLVANIA – PENNSYLVANIA STATE POLICE, SPERANZA ANIMAL RESCUE, JANINE GUIDO, PAIGE KULSA, NICHOLAS BIERZONSKI, and DAVID SPADA, Defendants.	:	Judge Jennifer P. Wilson

DEFENDANT CUMBERLAND COUNTY'S MEMORANDUM OF LAW IN SUPPORT OF ITS MOTION TO DISMISS PLAINTIFF'S COMPLAINT PURSUANT TO FEDERAL RULE OF CIVIL PROCEDURE 12(B)(6)

I. PRELIMINARY STATEMENT

Plaintiff Barry L. Orndorff was charged with animal neglect and cruelty after Pennsylvania State Police ("PSP") troopers responded to a neighbor's report of deceased animals on his property. A magisterial district judge bound every count over for trial, and a jury later acquitted him. He now sues seven defendants in twenty-three counts. Only Count I, a Section 1983 malicious prosecution claim, is directed to Defendant Cumberland County ("the County").

Count I is a municipal liability claim under *Monell v. Department of Social Services*, 436 U.S. 658 (1978), and it fails for four independent reasons. First, it identifies no actual County policy or custom; it offers only an information-and-belief recitation built on this single prosecution. Second, its failure-to-train theory alleges neither a training deficiency nor a pattern of prior violations. Third, Plaintiff's own averments, including the bindover of all 2,700 counts after a preliminary hearing, establish probable cause and therefore defeat any underlying constitutional violation. Fourth, the Fourth Amendment, not the Fifth Amendment, governs his claim. Count I should be dismissed with prejudice.

II. PROCEDURAL HISTORY

Plaintiff filed his Complaint in the Court of Common Pleas of Cumberland County on August 26, 2026, at No. 2026-09812. On October 2, 2026, the County removed the action to this Court. The County now moves to dismiss Count I pursuant to Federal Rule of Civil Procedure 12(b)(6).

III. RELEVANT FACTS

Plaintiff alleges that on June 4, 2021, he possessed live animals at his Shippensburg property as part of his employment as a licensed Domestic Animal Dealer and Hauler. (Compl. ¶ 13.) After a neighbor contacted PSP about deceased animals on the property, Trooper Kulsa responded, followed by Corporal Spada, Trooper Bierzonski, and then-Chief Deputy District Attorney Courtney Hair Larue. (Compl. ¶¶ 15–16 & n.1.) Plaintiff agreed to be interviewed and signed a PSP

waiver of rights and consent to search. (Compl. ¶ 18.) Trooper Kulsa contacted Janine Guido and Speranza Animal Rescue ("Speranza"), whose volunteers took possession of many of the animals. (Compl. ¶¶ 20–23.)

That same day, Trooper Bierzonski filed a Criminal Complaint and Affidavit of Probable Cause charging 2,250 counts, citing "the totality of the circumstances, common sense, training, and my observations at the scene." (Compl. ¶¶ 30, 32.) Plaintiff was arrested and released the next day on $5,000 bail. (Compl. ¶¶ 33–34.) On June 5, 2021, Trooper Bierzonski applied for a search warrant, which was approved. (Compl. ¶ 36.) The Complaint does not allege that any County official approved it. PSP and Speranza seized approximately 404 animals, which Speranza held "as evidence for PSP"; PSP later authorized their adoption. (Compl. ¶¶ 40, 46, 49.)

At the preliminary hearing, Ms. Larue amended the Criminal Complaint to add 450 counts, and Magisterial District Judge Nancy Hamil bound over all 2,700 counts for trial. (Compl. ¶¶ 43–44.) At trial, Commonwealth veterinarians testified about the perceived injuries and condition of the animals, and Plaintiff's own expert acknowledged unsanitary conditions on the property. (Compl. ¶¶ 67, 71(g).) The jury acquitted Plaintiff on August 30, 2024. (Compl. ¶ 64.)

In Count I, Plaintiff alleges, on the basis that "[i]t is believed and therefore averred," that the County, through the District Attorney's Office "and its agents,

including Speranza Animal Rescue and Janine Guido," maintained a policy or custom of approving charges and search warrants, and seizing animals, in cases involving dealer and hauler licensees "without first seeking a qualified expert review." (Compl. ¶¶ 83–84.) He alleges that these policies or customs developed "in part" from a failure to train or supervise County prosecutors, to which the County was deliberately indifferent, in violation of the Fourth and Fifth Amendments. (Compl. ¶¶ 85–88.) The Complaint identifies no other prosecution, licensee, warrant, or incident.

IV. STATEMENT OF QUESTIONS INVOLVED

A. Whether Count I fails to plead a County policy or custom that caused Plaintiff's alleged injury?

Suggested Answer: Yes.

B. Whether Count I fails to plead a failure-to-train claim?

Suggested Answer: Yes.

C. Whether Count I fails because Plaintiff has not pleaded an underlying constitutional violation?

Suggested Answer: Yes.

D. Whether the Fifth Amendment provides any basis for Count I?

Suggested Answer: No.

E. Whether dismissal should be with prejudice?

Suggested Answer: Yes.

V. STANDARD OF REVIEW

Federal notice and pleading rules require the complaint to provide the defendant notice of the claim and the grounds upon which it rests. *Phillips v. Cnty. of Allegheny*, 515 F.3d 224, 232 (3d Cir. 2008). In ruling on a Rule 12(b)(6) motion, the Court accepts as true all factual allegations and the reasonable inferences drawn from them. *In re Ins. Brokerage Antitrust Litig.*, 618 F.3d 300, 314 (3d Cir. 2010). A complaint, however, must contain sufficient factual matter to show that the claim is facially plausible. *Fowler v. UPMC Shadyside*, 578 F.3d 203, 210 (3d Cir. 2009); *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 555 (2007). "[W]here the well-pleaded facts do not permit the court to infer more than the mere possibility of misconduct, the complaint has alleged – but it has not 'show[n]' – 'that the pleader is entitled to relief.'" *Ashcroft v. Iqbal*, 556 U.S. 662, 679 (2009) (citing Fed. R. Civ. P. 8(a)(2)).

The Court (1) identifies the elements of the claim; (2) identifies the conclusory allegations that are "not entitled" to the assumption of truth; and (3) determines whether the remaining well-pleaded factual allegations "plausibly give rise to an entitlement to relief." *Santiago v. Warminster Twp.*, 629 F.3d 121, 130 (3d Cir. 2010). The Court need not accept bald assertions or legal conclusions. *In re Burlington Coat Factory Sec. Litig.*, 114 F.3d 1410, 1429 (3d Cir. 1997). The Court may consider the complaint, exhibits attached to it, and matters of public record, *Mayer v. Belichick*, 605 F.3d 223, 230 (3d Cir. 2010), including items

appearing in the record of the case, *Buck v. Hampton Twp. Sch. Dist.*, 452 F.3d 256, 260 (3d Cir. 2006), and the docket of the underlying criminal proceedings, *Wilson v. McVey*, 579 F. Supp. 2d 685, 688 (M.D. Pa. 2008).

VI. ARGUMENT

A. Count I Fails to Plead a County Policy or Custom That Caused Plaintiff's Alleged Injury.

A municipality may be liable under Section 1983 only "if the governmental body itself 'subjects' a person to a deprivation of rights or 'causes' a person 'to be subjected' to such a deprivation." *Pembaur v. Cincinnati*, 475 U.S. 469, 479 (1986). It cannot be held vicariously liable for its employees' conduct. *Jiminez v. All Am. Rathskeller, Inc.*, 503 F.3d 247, 249 (3d Cir. 2007); *Andrews v. City of Phila.*, 895 F.2d 1469, 1480 (3d Cir. 1990). Liability attaches only when "execution of a government's policy or custom, whether made by its lawmakers or by those whose edicts or acts may fairly be said to represent official policy, inflicts the injury," *Monell*, 436 U.S. at 694, and there must be "a direct causal link between the municipal policy or custom and the alleged constitutional deprivation." *City of Canton v. Harris*, 489 U.S. 378, 385 (1989).

A policy is a "statement, ordinance, regulation, or decision officially adopted and promulgated by [a local governing] body's officers." *Natale v. Camden Cty. Corr. Facility*, 318 F.3d 575, 584 (3d Cir. 2003) (quoting *Bd. of the Cnty. Comm'rs of Bryan Cnty. v. Brown*, 520 U.S. 397, 404 (1997)). A custom is an act "that has

not been formally approved by an appropriate decision maker," but is "so widespread as to have the force of law." *Id.* A plaintiff must "identify the challenged [custom or] policy, attribute it to the [municipality] itself, and show a causal link between execution of the policy [or custom] and the injury suffered." *Losch v. Borough of Parkesburg*, 736 F.2d 903, 910 (3d Cir. 1984). "To satisfy the pleading standard, [plaintiff] must identify a custom or policy, and specify what exactly that custom or policy was." *McTernan v. City of York*, 564 F.3d 636, 658 (3d Cir. 2009). A single incident, especially one involving only actors below the policymaking level, does not suffice to show a municipal policy. *Oklahoma City v. Tuttle*, 471 U.S. 808, 823–24 (1985).

1. The policy and custom allegations are conclusory and rest on a single prosecution.

Paragraphs 83 and 84 are the whole of Plaintiff's *Monell* theory, and both are pleaded on the basis that "[i]t is believed and therefore averred." They identify no ordinance, regulation, written directive, or decision of any County policymaker. *See Pembaur*, 475 U.S. at 483–84. They identify no other licensee, prosecution, or search warrant from which a widespread practice could be inferred. *See City of St. Louis v. Praprotnik*, 485 U.S. 112, 127–30 (1988). What remains is Plaintiff's own prosecution, which is exactly the single incident that *Tuttle* holds insufficient. Allegations of this kind are not entitled to the assumption of truth. *Santiago*, 629 F.3d at 130.

Courts in this Circuit dismiss materially indistinguishable pleadings. In *Zerby v. Waltz*, No. 1:16-cv-00383, Doc. No. 33 (M.D. Pa. Jan. 27, 2017) (Kane, J.), this Court dismissed a malicious prosecution *Monell* claim against this same County where the complaint contained no factual allegations specifying any relevant policy or custom attributable to the County and no facts supporting a plausible nexus between such a policy and the constitutional deprivation. *Id.* at 13 (citing *McTernan*, 564 F.3d at 658). Likewise, in *Dress v. Falls Township*, No. 16-4918, Doc. No. 22 (E.D. Pa. May 18, 2017) (Pratter, J.), the court dismissed a malicious prosecution *Monell* claim where the plaintiff alleged two customs but did not explain the "direct causal link" between those customs and the claim of malicious prosecution. *Id.* at 7–8 (citing *Bryan Cnty.*, 520 U.S. at 404). Count I suffers from the same defects.

VII. CONCLUSION

For the foregoing reasons, Defendant Cumberland County respectfully requests that this Honorable Court grant its Motion, dismiss Count I of Plaintiff's Complaint with prejudice, and dismiss the County from this action.

CERTIFICATE OF NON-CONCURRENCE AND OF GOOD FAITH EFFORTS TO CONFER

I, Leticia J. Santiago, Esquire, counsel for Defendant Cumberland County, do hereby certify, pursuant to Local Rule 7.1 and this Court's Civil Practice Order, that prior to filing the foregoing Motion to Dismiss Plaintiff's Complaint Pursuant

to Federal Rule of Civil Procedure 12(b)(6), I sought the concurrence of Plaintiff's counsel, Matthew D. Fogal, Esquire, and Joshua P. Geist, Esquire, and made good faith efforts to confer with them to determine whether the identified pleading deficiencies may be cured by amendment.

Specifically, I left telephone messages for each of Plaintiff's counsel and, on October 9, 2026, followed up in writing by email addressed to both counsel. That email advised that the County intends to move to dismiss Count I, the sole cause of action against the County; explained the County's position that the Complaint does not state a *Monell* claim and that amendment would be futile; and invited counsel to confer before the Motion was filed.

As of the date of this certification, I have received no response from either counsel to my telephone messages or my email. Plaintiff's concurrence in the Motion has therefore not been obtained, and the Motion is presented as opposed.

CERTIFICATE OF SERVICE

I, Leticia J. Santiago, Esquire, do hereby certify that the attached document was filed electronically with the Court and was sent to the following via the ECF System on October 9, 2026:

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[The remaining counsel of record listed in the filed certificate are omitted from this sample.]

Dated: October 9, 2026

Respectfully submitted,
SANTIAGO & ASSOCIATES

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